

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MAVL CAPITAL INC., IAM & AL GROUP INC., AND MAXIM OSTROVSKIY, *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC. AND DMITRY ALPER, *Respondents.*

DOCKET NO. 16-16

Served: October 30, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER REQUIRING JOINT STATUS REPORT

On October 29, 2020, the Commission issued a memorandum opinion and order (“Commission Order”) remanding the section 41102(c) claim regarding the Mercedes for further proceedings. In addition, the claim regarding the 2011 Porsche Panamera was stayed pending the Commission’s order.

The parties are hereby required to confer by November 20, 2020, to discuss next steps in this proceeding. The parties will then file a joint status report by December 2, 2020.

On December 17, 2018, the Commission issued a final rule regarding the interpretation of 46 U.S.C. § 41102(c). Commission Rule § 545.4 states:

46 U.S.C. 41102(c) is interpreted to require the following elements in order to establish a successful claim for reparations:

1. The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
2. The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
3. The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
4. The practice or regulation is unjust or unreasonable; and

5. The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

The parties are required to discuss whether settlement of this claim is possible to avoid the time and expense involved in litigating this proceeding under the new Commission Rule. The parties should state in the joint status report whether they have discussed settlement, but they should *not* provide their positions on settlement. If the parties decide to settle this proceeding, they must submit a motion for approval of the settlement with a copy of the settlement agreement.

An order issued in this proceeding on January 17, 2017, indicated that the parties had been engaged in other litigation regarding the same vehicles at issue in this proceeding. “Therefore, the requirement in the Initial Order that the parties meet and confer to establish a schedule for the completion of discovery is vacated. All relevant information from the initial disclosures and other discovery taken in the New York proceeding may be used in this proceeding.” Order Modifying Initial Order at 2. The order further required that “a party seeking to take additional discovery in this proceeding must file a motion seeking leave of the undersigned to take the discovery.” *Id.*

Discovery exchanged in other litigation may be used in this proceeding. If the parties feel that additional discovery is necessary to establish any of the elements of the claim for the two vehicles at issue, then they should indicate in their joint status report the specific discovery request they propose and a statement of how the discovery would relate to an element of the claim. The only additional discovery permitted will be that approved by the undersigned.

The parties should agree on a proposed schedule for any additional discovery requested, Complainants’ remand brief, Respondents’ remand opposition brief, and Complainant’s remand reply brief. The proposed schedule should be included in the joint status report.

As a reminder, filings should be sent to the Office of the Secretary at secretary@fmc.gov with a courtesy copy sent to judges@fmc.gov with opposing parties copied. Due to challenges associated with COVID-19, the Commission is temporarily waiving certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints. Docket No. 20-07, Order (May 12, 2020), www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf; *see also* Temporary Adjustments in FMC Operations (Mar. 19, 2020), www.fmc.gov/temporary-adjustments-in-fmc-operations/.

For the reasons set forth above, the parties are hereby **ORDERED** to confer by November 20, 2020, and to file a joint status report with proposed schedule as outlined above on or before December 2, 2020.



Erin M. Wirth
Chief Administrative Law Judge